

24VECV05930 24VECV05930

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24VECV05930 Hearing Date: July 28, 2026 Dept: W

[TENTATIVE] ORDER: The Court CONTINUES the hearing on these four motions to August 31, 2026. The parties are ordered to meet and confer over the phone or in person for at least one hour to discuss the underlying discovery issues addressed in this motion and to potentially resolve these discovery disputes informally. The parties are also ordered to file a joint declaration describing in detail the results of the meet and confer by August 24, 2026.

Background

This is a motor vehicle negligence case. Plaintiff Manijeh Motamen alleges that, on January 19, 2024, Defendant Ivory Calabria crashed her vehicle into the driver-side door of Plaintiff's car while driving southbound on Topanga Canyon Boulevard. Plaintiff alleges that this crash caused her door to jam, and she was trapped in her vehicle until emergency responders tore the door off with a hydraulic rescue tool.

On December 2, 2024, Plaintiff filed suit, alleging two causes of action for motor vehicle and general negligence.

Now, Plaintiff brings four motions to compel further discovery responses from Defendant Ivory Calabria.

Discussion

Plaintiff moves to compel further responses for four separate discovery requests from Defendant. Specifically, Plaintiff moves to compel further responses to:

RFAs, Set Two, Nos. 22, 23, and 25-65;

SROGs, Set Two, Nos. 27-28, 30, 34, 36-37, 40-41, 49-56, and 59;

FROGs, Set Two, Nos. 15.1, 16.1-16.8, and 17.1;

RFPs, Set Two, Nos. 31, 41-45, and 47-49.

i) Inadequate Meet and Confer

As a threshold matter, the Court finds that Plaintiff has failed to meet and confer properly before filing this motion. A motion to compel further responses, “shall be accompanied by a meet and confer declaration under Section 2016.040.” (CCP § 2033.290(b)(1); CCP §§ 2030.300(b)(1); 2031.310(b)(2).) The declaration must state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented in the motion. (CCP § 2016.040.) Here, Plaintiff provides the declaration of their lawyer Daniel Hakhamzadeh in support of all four motions. (See e.g., MTCF Re: Form Interrogatories, Hakhamzadeh Decl.) Mr. Hakhamzadeh states that on March 22, 2026, he sent a meet and confer email to Defendant’s counsel. (Hakhamzadeh Decl. ¶ 4.) Plaintiff attaches a copy of this email to the separate statements. (See e.g., Sep. Statement Re: FROGs, Ex. C.) Defendant emailed back one week later, agreeing to supplement some responses, but not others. (Id. ¶ 5; see also Sep. Statement Re: FROGs, Ex. D.)

This Court does not find that sending a single meet and confer email shows a reasonable and good faith attempt at an informal resolution to a discovery dispute of this magnitude. Thus, Plaintiff has failed meet their meet and confer obligations. For this reason, the Court will continue this motion to August 31, 2026. Both parties are ordered to meet and confer over the phone or in person for at least one hour to discuss the underlying discovery issues addressed in this motion and to potentially resolve these discovery disputes informally. The parties are also ordered to file a joint declaration describing in detail the results of the meet and confer by August 24, 2026.

ii) Informal Notes from the Court

However, in an attempt to facilitate a productive discussion, the Court will briefly address some of the common themes of these requests.

First, the Court agrees with Plaintiff that many of Defendant’s responses constitute improper boilerplate objections. For example, RFAs Nos. 22-32 all request admissions to simple factual questions. (See generally, Sep. Statement Re: RFAs, pp. 1-9.) Plaintiff responds to all of these requests with the same boilerplate objection:

“The request calls for speculation. The request is not relevant and is improper as it does not seek the adjudication of facts. Without waiving said objections, a reasonable inquiry concerning the matter has been made, and that the information known or readily obtainable is insufficient to enable Responding party to admit or deny the matter.” (See e.g., Id. p. 8:13-17.)

Similarly, Defendant provides boilerplate objections to simple factual special interrogatories, such as “Do YOU contend that Plaintiff suffered no new injury to her cervical spine as a result of the INCIDENT?” (Sep. Statement Re: SROGs, p. 5:4-5.) Plaintiff improperly objects to this SROG, stating, “Objection. The interrogatory is overbroad. The interrogatory seeks a legal conclusion and calls for a premature disclosure of expert opinion. Without waiving said objections, Responding party lacks information and belief to respond at this time.” (Id. p. 5:8-10.) This is not a question that requires either a legal conclusion or an expert opinion. Thus, this response, as well as other similar ones, are improper.

Additionally, the Court disagrees with Defendant that Plaintiff’s separate statement as to FROGs is procedurally defective. Plaintiff’s responses to FROGs, which are attached as Exhibit B to the FROGs separate statement, match the responses in the separate statement. The one exception to this is FROG 15.1, which involved a multi-page explanation of every affirmative defense Defendant plans to employ. In this instance, Plaintiff’s brevity is appreciated, not problematic.

While this is not a comprehensive list, the Court hopes that these clarifications will help the parties resolve this discovery dispute informally.

Conclusion

The Court CONTINUES the hearing on these four motions to August 31, 2026. The parties are ordered to meet and confer over the phone or in person for at least one hour to discuss the underlying discovery issues addressed in this motion and to

potentially resolve these discovery disputes informally. The parties are also ordered to file a joint declaration describing in detail the results of the meet and confer by August 24, 2026.

IT IS SO ORDERED,

July 28, 2026

Judge of the Superior Court